



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

FEB 23 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6658
(SEVENTH REVISION)

EXPIRATION DATE: December 31, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: U.S. Department of Energy (DOE)
Germantown, Maryland
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce, of Division 1.1D explosive in a non-DOT specification container. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.62.
5. BASIS: This exemption is based on the application of U.S. Department of Energy dated December 7, 1998, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
PENT, desensitized (with not less than 15 percent phlegmatizer by mass)	1.1D	UN0150	II

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7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is an open-head steel drum in accordance with Mason and Hanger-Silas Mason Company's Drawing No. 1G-A01, dated July 7, 1972, on file with the Office of Hazardous Materials Exemption and Approvals (OHMEA).
- b. Net weight of high explosive content may not exceed 10 pounds per drum.
- c. Removable head sheet must be of 18 gage steel (minimum) and closed by means of a 12 gage bolted ring with drop forged lugs, one of which is threaded having 5/8-inch bolt and nut. Other type closure equal in strength and efficiency may be used also.
- d. Drum may be reused subject to compliance with § 173.28(a).

8. SPECIAL PROVISIONS.

- a. Only DOE's contractor specifically identified to the OHMEA may use the packaging covered by this exemption pursuant to § 173.22a.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

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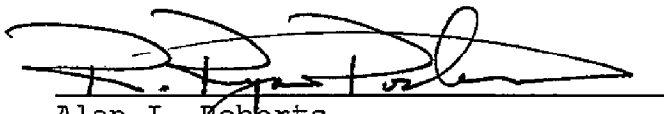
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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

2/23/99
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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